

Court No. - 40

Case :- WRIT - C No. - 20839 of 2023

Petitioner :- Rajendra Kumar Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Amit Kumar Srivastava, Manish Dwivedi

Counsel for Respondent :- CSC, Gaurav Singh

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prakash Padia, J.

1. Heard Sri Vibhu Rai, learned counsel for the petitioner and learned Standing Counsel for the State-respondent no.1. Sri Gaurav Singh, Advocate had accepted notices on behalf of respondent nos.2 to 4.

2. The present writ petition has been preferred for a mandamus commanding respondent no.3 i.e. Executive Engineer, Dakshinanchal Vidyut Vitran Nigam, E.U.D.D. Karwi, Chitrakoot to decide petitioner's objection dated 24.3.2023 within stipulated time period.

3. Learned counsel for the petitioner submitted that earlier the petitioner has approached this Court seeking restoration of electricity supply of his Stone Crusher Mill by filing Writ C No.4285 of 2023 (M/s Rajendra Kumar Sharma Stone Crusher, Gonda vs. State of U.P. and others). The aforementioned writ petition was dismissed by a Co-ordinate Bench of this Court vide order dated 17.2.2023 on the ground that the petitioner had efficacious remedy to file objections under Paragraph 6.8 of the U.P. Electricity Supply Code, 2005 (in short 'the Code'). The petitioner was granted liberty to approach the competent authority for supply of electricity on the terms and conditions to the satisfaction of the respondents. He further submitted that in response to the said order, the petitioner has filed objections under Paragraph 6.8 of the Code on 24.3.2023, but since then the respondents have not taken any decision on the said objection. In such a situation, the petitioner has been compelled to approach this Court.

4. Considering the facts and circumstances, the present writ petition is disposed of with a direction to the concerned respondent authority that in case objection dated 24.3.2023 filed by the petitioner has not been decided till date, the same shall be considered and decided by him expeditiously, preferably within three weeks from the date of filing of a copy of this order.

Order Date :- 27.6.2023

Manish Himwan